



**PARTICIPANTS AT
THE SHIMLA MEETING
AIR THEIR
GRIEVANCES**

a website on March 10, 2005, is now a movement. In several cities, the "harassed" husbands and relatives meet weekly. "The idea is to counsel them how to fight the law and other forces," says Nitin Gupta, who coordinates meetings in Chandigarh on Sundays. While Delhi has Crime Against Man cell run by advocate R.P. Chugh, Ahmedabad has the Akhil Bharatiya Patni Attyachar Virodhi Sangh and Mumbai has the Protect Indian Family Foundation which has not just husbands, but even fathers, mothers and sisters as members.

So is husband-beating just an urban malaise, brought on by spouses who both work and therefore deal with constant squabbles over equal

WHAT SIFF CLAIMS

55,200

married men commit suicide every year (57,593 for 2007) as compared to 30,000 married women, according to the National Crime Bureau.

98%

of dowry harassment cases are false. Married women have been extorting money from their husbands by threatening them with false cases.

13 lakh

men lost their jobs between 2001 and 2006, mostly due to frivolous cases lodged by wives.

WHAT MEN WANT

- One unverified complaint under Section 498A IPC lands a man and his family in jail. No probe is done to verify the tenacity of the complaint.
- The Constitution states that no person shall be tried twice for the same offence. However, in a harassment case, the man and his family face multiple litigations, prosecutions, trials for the same cause of action.
- Under the Domestic Violence Act, men aren't provided protection against abuse by their wives and in-laws, and the complainant woman's sole testimony is considered as evidence of violation enough to convict the man.

distribution of household chores, or is it the declining moral fabric? Not quite. In 2005, the Sehore district in the Bundelkhand region of Madhya Pradesh witnessed quite a turnaround in terms of harassment cases. The district's police-run family counselling centre recorded that the cumulative complaints by men outnumber those by women (468 by men against 449 by women). In 2005, the numbers reached new heights—of the 125 recorded cases, 78 were filed by men seeking protection from their wives. A survey conducted by the Orissa State Commission for Women found that between 2002 and 2007, 567 cases were recorded in the state of women torturing men, with the numbers showing a sharp rise.

The SIFF has so far held seven protest marches against "women-oriented laws", but this conference is a watershed as they now have their charter of demands to be presented to the Government. With 40,000 members and the number set to increase, the foundation leaders are happy. "Now harassed husbands and their family members know they are not alone as they've the moral support to fight the misuse of these laws," says Bangalore-based Pandurang Katti, SIFF's founder member.

Is it really that simple? Criminal psychologist Rajat Mitra, who is director of the Delhi-based NGO Swanchetan and works closely with the Delhi Police, acknowledges that a large percentage of false cases are also filed "because the police is passive and unwilling to investigate the genuineness of a complaint". However, in a male-dominated society, the claim that men have become the weaker sex and are being discriminated against sounds a trifle hollow, even though husband-beating and husband-baiting seems to be on the rise, if the statistics bandied about in Shimla are any indication. Marriages, they say, are made in heaven. The Shimla Declaration suggests that it could very well be designed in hell.

with inputs by Ambresh Mishra